

M/s Vehlina Steel & Alloys (Pvt.) Ltd. v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 26 August 2011 · Writ-C No. 48192 of 2011 · **Writ disposed of; petitioner relegated to Section 127 appeal.**

HEADNOTE

A writ seeking to quash a final assessment is not entertained on merits where Section 127 of the Electricity Act, 2003 provides a statutory appeal. The Act is a self-contained code and the appellate authority has ample jurisdiction, so the appeal is efficacious. The consumer's argument that no appeal lies against an assessment under Section 135 was rejected, the Corporation itself having submitted that a Section 127 appeal was available. Documents needed for the appeal are to be supplied within one week.

FACTUAL SUMMARY

M/s Vehlina Steel & Alloys (Pvt.) Ltd. filed a writ seeking certiorari to quash U.P. Power Corporation Ltd.'s final assessment dated 4 August 2011. It contended that checking, police and meter reports recorded nothing adverse, that documents needed for its reply were withheld, and that clause 8.1(b)(ii) of the U.P. Electricity Supply Code, 2005 required the proceedings to be dropped. It also claimed reconnection on a lesser deposit. The Corporation raised a preliminary objection that a statutory appeal lay under Section 127 of the Electricity Act, 2003.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

statutory appeal bars writ against final assessment

HOLDING

A writ challenging a final assessment will not be entertained on merits when a statutory appeal lies under Section 127. The Electricity Act, 2003 is a self-contained code; the appellate authority has ample jurisdiction to consider all aspects, so the appeal is an efficacious remedy. The petitioner's argument that no appeal lies against an assessment under Section 135 was rejected where the Corporation itself submitted that a Section 127 appeal was available. Documents required for filing the appeal are to be furnished by the licensee within one week. ¶ 7-10

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A writ seeking to quash a final assessment is not entertained on merits where Section 127 of the Electricity Act, 2003 provides a statutory appeal. The Act is a self-contained code and the appellate authority has ample jurisdiction, so the appeal is efficacious.. ¶ 7-10

final-assessment-order-relegates-assessee-to-section-127-appeal A writ seeking to quash a final assessment is not entertained on merits where Section 127 of the Electricity Act, 2003 provides a statutory appeal. The Act is a self-contained code and the appellate authority has ample jurisdiction, so the appeal is efficacious.. ¶ 7-10

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CHECKING, POLICE AND METER REPORTS RECORDED NOTHING ADVERSE, AND WHETHER THE FINAL ASSESSMENT WAS SUSTAINABLE ON MERITS

¶ 7

NOT DECIDED — WHETHER ASSESSMENT PROCEEDINGS WERE WITHOUT JURISDICTION FOR FAILURE TO DROP THEM UNDER CLAUSE 8.1(B)(II) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 5

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.